

STATE OF NEW YORK

2598--A

Cal. No. 176

2025-2026 Regular Sessions

IN SENATE

January 21, 2025

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- recommended to the Committee on Local Government in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the general municipal law, the general city law, the town law and the village law, in relation to expanding training requirements for municipalities in relation to compliance with the open meetings law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (d) of subdivision 2 of section 239-c of the
2 general municipal law, as amended by chapter 662 of the laws of 2006, is
3 amended to read as follows:
4 (d) Training and attendance requirements. (i) Each member of a county
5 planning board shall complete, at a minimum, [~~four~~] five hours of train-
6 ing each year designed to enable such members to more effectively carry
7 out their duties. Training received by a member in excess of [~~four~~] five
8 hours in any one year may be carried over by the member into succeeding
9 years in order to meet the requirements of this paragraph. Such training
10 shall be approved by the county and may include, but not be limited to,
11 training provided by a regional or county planning office or commission,
12 county planning federation, state agency, statewide municipal associ-
13 ation, college or other similar entity, provided that at least one hour
14 of such training is provided by the committee on open government or
15 another appropriate entity in relation to compliance with the open meet-
16 ings law. Training may be provided in a variety of formats, including
17 but not limited to, electronic media, video, distance learning and
18 traditional classroom training.

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets [~~-~~] is old law to be omitted.

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(ii) To be eligible for reappointment to such board, such member shall have completed the training promoted by the county pursuant to this paragraph.

(iii) The training required by this paragraph may be waived or modified by the county when, in the judgment of the governing board, it is in the best interest of the county to do so provided that such county shall provide public notice, including a justification, of their decision to waive or modify training requirements.

(iv) No decision of a county planning board shall be voided or declared invalid because of a failure to comply with this paragraph.

§ 2. Subdivision 7-a of section 27 of the general city law, as added by chapter 662 of the laws of 2006, is amended to read as follows:

7-a. Training and attendance requirements. a. Each member of the planning board of a city, except a city having a population of more than one million, shall complete, at a minimum, ~~four~~ five hours of training each year designed to enable such members to more effectively carry out their duties. Training received by a member in excess of ~~four~~ five hours in any one year may be carried over by the member into succeeding years in order to meet the requirements of this subdivision. Such training shall be approved by the legislative body and may include, but not be limited to, training provided by a municipality, regional or county planning office or commission, county planning federation, state agency, statewide municipal association, college or other similar entity, provided that at least one hour of such training is provided by the committee on open government or another appropriate entity in relation to compliance with the open meetings law. Training may be provided in a variety of formats, including but not limited to, electronic media, video, distance learning and traditional classroom training.

b. To be eligible for reappointment to such board, such member shall have completed the training promoted by the city pursuant to this subdivision.

c. The training required by this subdivision may be waived or modified by resolution of the legislative body of the city when, in the judgment of such legislative body, it is in the best interest of the city to do so, provided that such resolution shall include a justification for the city's decision to waive or modify such training requirements.

d. No decision of a planning board shall be voided or declared invalid because of a failure to comply with this subdivision.

§ 3. Subdivision 7-a of section 81 of the general city law, as added by chapter 662 of the laws of 2006, is amended to read as follows:

7-a. Training and attendance requirements. (a) Each member of the board of appeals in a city, except a city having a population of more than one million, shall complete, at a minimum, ~~four~~ five hours of training each year designed to enable such members to more effectively carry out their duties. Training received by a member in excess of ~~four~~ five hours in any one year may be carried over by the member into succeeding years in order to meet the requirements of this subdivision. Such training shall be approved by the legislative body and may include, but not be limited to, training provided by a municipality, regional or county planning office or commission, county planning federation, state agency, statewide municipal association, college or other similar entity, provided that at least one hour of such training is provided by the committee on open government or another appropriate entity in relation to compliance with the open meetings law. Training may be provided in a variety of formats, including but not limited to, elec-

1 tronic media, video, distance learning and traditional classroom train-
2 ing.

3 (b) To be eligible for reappointment to such board, such member shall
4 have completed the training promoted by the city pursuant to this subdi-
5 vision.

6 (c) The training required by this subdivision may be waived or modi-
7 fied by resolution of the legislative body of the city when, in the
8 judgement of such legislative body, it is in the best interest of the
9 city to do so, provided that such resolution shall include a justifica-
10 tion for the city's decision to waive or modify such training require-
11 ments.

12 (d) No decision of a board of appeals shall be voided or declared
13 invalid because of a failure to comply with this subdivision.

14 § 4. Subdivision 7-a of section 267 of the town law, as added by chap-
15 ter 662 of the laws of 2006, is amended to read as follows:

16 7-a. Training and attendance requirements. (a) Each member of the
17 board of appeals shall complete, at a minimum, [~~four~~] five hours of
18 training each year designed to enable such members to more effectively
19 carry out their duties. Training received by a member in excess of
20 [~~four~~] five hours in any one year may be carried over by the member into
21 succeeding years in order to meet the requirements of this subdivision.
22 Such training shall be approved by the town board and may include, but
23 not be limited to, training provided by a municipality, regional or
24 county planning office or commission, county planning federation, state
25 agency, statewide municipal association, college or other similar
26 entity, provided that at least one hour of such training is provided by
27 the committee on open government or another appropriate entity in
28 relation to compliance with the open meetings law. Training may be
29 provided in a variety of formats, including but not limited to, elec-
30 tronic media, video, distance learning and traditional classroom train-
31 ing.

32 (b) To be eligible for reappointment to such board, such member shall
33 have completed the training promoted by the town pursuant to this subdi-
34 vision.

35 (c) The training required by this subdivision may be waived or modi-
36 fied by resolution of the town board when, in the judgment of the town
37 board, it is in the best interest of the town to do so, provided that
38 such resolution shall include a justification for the town's decision to
39 waive or modify such training requirements.

40 (d) No decision of a zoning board of appeals shall be voided or
41 declared invalid because of a failure to comply with this subdivision.

42 § 5. Subdivision 7-a of section 271 of the town law, as added by chap-
43 ter 662 of the laws of 2006, is amended to read as follows:

44 7-a. Training and attendance requirements. a. Each member of the plan-
45 ning board shall complete, at a minimum, [~~four~~] five hours of training
46 each year designed to enable such members to more effectively carry out
47 their duties. Training received by a member in excess of [~~four~~] five
48 hours in any one year may be carried over by the member into succeeding
49 years in order to meet the requirements of this subdivision. Such train-
50 ing shall be approved by the town board and may include, but not be
51 limited to, training provided by a municipality, regional or county
52 planning office or commission, county planning federation, state agency,
53 statewide municipal association, college or other similar entity,
54 provided that at least one hour of such training is provided by the
55 committee on open government or another appropriate entity in relation
56 to compliance with the open meetings law. Training may be provided in a

1 variety of formats, including but not limited to, electronic media,
2 video, distance learning and traditional classroom training.

3 b. To be eligible for reappointment to such board, such member shall
4 have completed the training promoted by the town pursuant to this subdi-
5 vision.

6 c. The training required by this subdivision may be waived or modified
7 by resolution of the town board when, in the judgment of the town board,
8 it is in the best interest of the town to do so, provided that such
9 resolution shall include a justification for the town's decision to
10 waive or modify such training requirements.

11 d. No decision of a planning board shall be voided or declared invalid
12 because of a failure to comply with this subdivision.

13 § 6. Subdivision 7-a of section 7-712 of the village law, as added by
14 chapter 662 of the laws of 2006, is amended to read as follows:

15 7-a. Training and attendance requirements. (a) Each member of the
16 board of appeals shall complete, at a minimum, [~~four~~] five hours of
17 training each year designed to enable such members to more effectively
18 carry out their duties. Training received by a member in excess of
19 [~~four~~] five hours in any one year may be carried over by the member into
20 succeeding years in order to meet the requirements of this subdivision.
21 Such training shall be approved by the board of trustees and may
22 include, but not be limited to, training provided by a municipality,
23 regional or county planning office or commission, county planning feder-
24 ation, state agency, statewide municipal association, college or other
25 similar entity, provided that at least one hour of such training is
26 provided by the committee on open government or another appropriate
27 entity in relation to compliance with the open meetings law. Training
28 may be provided in a variety of formats, including but not limited to,
29 electronic media, video, distance learning and traditional classroom
30 training.

31 (b) To be eligible for reappointment to such board, such member shall
32 have completed the training promoted by the village pursuant to this
33 subdivision.

34 (c) The training required by this subdivision may be waived or modi-
35 fied by resolution of the board of trustees when, in the judgment of the
36 board of trustees, it is in the best interest of the village to do so,
37 provided that such resolution shall include a justification for the
38 village's decision to waive or modify such training requirements.

39 (d) No decision of a board of appeals shall be voided or declared
40 invalid because of a failure to comply with this subdivision.

41 § 7. Subdivision 7-a of section 7-718 of the village law, as added by
42 chapter 662 of the laws of 2006, is amended to read as follows:

43 7-a. Training and attendance requirements. a. Each member of the plan-
44 ning board shall complete, at a minimum, [~~four~~] five hours of training
45 each year designed to enable such members to more effectively carry out
46 their duties. Training received by a member in excess of [~~four~~] five
47 hours in any one year may be carried over by the member into succeeding
48 years in order to meet the requirements of this subdivision. Such train-
49 ing shall be approved by the board of trustees and may include, but not
50 be limited to, training provided by a municipality, regional or county
51 planning office or commission, county planning federation, state agency,
52 statewide municipal association, college or other similar entity,
53 provided that at least one hour of such training is provided by the
54 committee on open government or another appropriate entity in relation
55 to compliance with the open meetings law. Training may be provided in a

1 variety of formats, including but not limited to, electronic media,
2 video, distance learning and traditional classroom training.

3 b. To be eligible for reappointment to such board, such member shall
4 have completed the training promoted by the village pursuant to this
5 subdivision.

6 c. The training required by this subdivision may be waived or modified
7 by resolution of the board of trustees when, in the judgment of the
8 board of trustees, it is in the best interest of the village to do so,
9 provided that such resolution shall include a justification for the
10 village's decision to waive or modify such training requirements.

11 d. No decision of a planning board shall be voided or declared invalid
12 because of a failure to comply with this subdivision.

13 § 8. This act shall take effect one year after it shall have become a
14 law.